

Ram Chandra v. State of U.P. — OTS proposal not a recovery certificate; pending 6.5 objection

High Court of Judicature at Allahabad · Division Bench · 17 January 2023 · Writ-C No. 31145 of 2021 · **Writ disposed; OTS proposal not quashed; liberty to press pending 6.5 objection.**

HEADNOTE

An OTS proposal offering waiver of surcharge is not a recovery certificate and will not be quashed in writ. A consumer previously relegated to Clauses 5.6 and 6.5 of the U.P. Electricity Supply Code, 2005, after a defective meter with a broken seal, must press any pending objection under those clauses rather than obtain quashing of the OTS communication.

FACTUAL SUMMARY

Ram Chandra, a 1 kVA consumer occupying a kachcha house, sought quashing of a 30 September 2021 demand of Rs 1,07,497.07, described as a recovery certificate. An 18 September 2021 citation had claimed Rs 67,261. The meter was found defective with the seal broken. An earlier writ (Writ-C No. 6084 of 2020) was disposed of on 20 February 2020 with liberty to invoke Clauses 5.6 and 6.5 of the U.P. Electricity Supply Code, 2005. He claimed a 2 March 2020 objection but produced no decision.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending billing objection after OTS proposal misdescribed as recovery

HOLDING

Where a consumer, already given liberty to invoke Clauses 5.6 and 6.5 after a defective-meter demand, seeks to quash a later communication as a recovery certificate, the Court will not quash it if the document is only an OTS proposal offering surcharge waiver. The writ is disposed of with liberty to press the pending Clause 6.5 (and 5.6) objection if it remains undecided. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy The prayer to quash the alleged recovery was refused on the footing that the paper was an OTS proposal; the consumer was left to press a pending Clause 6.5 objection instead of a merits decision on the dues. ¶ 1

6.5-pending-complaint-writ-remitted The petitioner claimed a 2 March 2020 objection pursuant to an earlier 5.6/6.5 liberty order; the Court remitted him to press that objection if still undecided. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY DUES AND THE PENDING CLAUSE 5.6/6.5 OBJECTION

The Court did not decide the bill or the defective-meter dispute; the petitioner was left to press the objection claimed to have been filed on 2 March 2020 if still undecided. ¶ 1